

# Maine AI Compute Transparency and Grid Stewardship Act

*A Proposed Act to Establish AI Workload Disclosure and Grid Stewardship Standards for Large Data Centers Sited in Maine*

A redrafted alternative to L.D. 307, due to the Governor's veto of April 24, 2026

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## Part I. Policy Artifact

*A proposed substitute for L.D. 307, "An Act to Place a Moratorium on the Development of Data Centers in Maine"*

### 1. Title

This Act can be cited as the "Maine AI Compute Transparency and Grid Stewardship Act."

### 2. Findings

The Legislature finds that:

- (a) The expansion of large data center capacity in Maine and across the New England Independent System Operator (ISO-NE) control area is driven principally by demand for compute associated with the training and operation of AI systems.
- (b) Maine's grid, situated at the eastern terminus of the ISO-NE interconnection, exhibits limited transmission redundancy and is sensitive to large concentrated load additions.
- (c) Existing permitting frameworks do not require operators to disclose the type, scale, or distribution of computational workloads, leaving regulators, ratepayers, and host communities without information sufficient to assess project costs and benefits.
- (d) A targeted disclosure and stewardship regime is sufficient to remedy these information asymmetries without categorical prohibition.

### 3. Definitions.

For the purposes of this Act:

- (a) "Covered facility" means a data center, including any facility located at a single point of common coupling, whose contracted or interconnected electrical demand exceeds 20 MW.
- (b) "AI workload" means computational work performed for the purpose of (i) training, fine-tuning, distillation, or other modification of the parameters of an artificial intelligence model; or (ii) inference, retrieval, or agentic operations executed using such a model.
- (c) "Frontier training run" means an AI workload involving the training of a single model whose cumulative training compute exceeds  $1 \times 10^{25}$  integer or floating-point operations.
- (d) "Operator" means the entity holding the interconnection agreement or, where distinct, the entity controlling allocation of compute resources within the facility.

(e) “Commission” means the Maine Public Utilities Commission.

(f) “Council” means the Data Center Coordination Council established under part 7.

#### **4. Workload Composition Reports.**

(a) Each operator of a covered facility shall file with the Commission, on a quarterly basis, a Workload Composition Report containing:

(1) Total facility energy consumption (MWh) and twenty-minute coincident peak demand (MW).

(2) The estimated share of facility-wide accelerator-hours allocated to (A) AI training; (B) AI inference and agentic operations; (C) cryptocurrency mining; and (D) all other workloads.

(3) For each tenant or internal business unit comprising more than ten percent of facility load, a brief description of the principal use case.

(4) Notification of any frontier training run conducted at the facility, with identification of the model developer of record.

(5) Power usage effectiveness and water usage effectiveness, reported under ASHRAE Standard 90.4.

(6) Any third-party power purchase agreement, behind-the-meter generation, or curtailment arrangement in force.

(b) The Commission shall publish each Report within 30 days of filing. Additionally, aggregate workload composition figures, total energy consumption, and frontier-run notifications shall not be redacted.

#### **5. Tiered Interconnection Review.**

(a) An interconnection request for a covered facility with anticipated demand of 20 to 100 megawatts shall be subject to expedited Commission review and a Grid Impact Assessment.

(b) An interconnection request exceeding 100 megawatts shall be subject to full Commission review with a sixty-day public comment period and a public hearing in the host municipality.

(c) The Commission shall not approve an interconnection request unless it finds that (i) the facility's projected load can be accommodated without raising firm-service rates for residential or small commercial customers; (ii) the operator has executed a Grid Stewardship Agreement under part 6; and (iii) the operator has submitted a binding undertaking to comply with part 4.

#### **6. Grid Stewardship Agreement.**

Each covered facility shall execute a Grid Stewardship Agreement with the relevant transmission and distribution utility, which shall include:

(a) Contribution to a Grid Resilience Fund equal to fifty cents per megawatt-hour consumed, disbursed by the Commission for grid hardening, demand response, and ratepayer assistance under the existing Low-Income Assistance Program;

**(b)** Mandatory enrollment in a curtailment program enabling the utility to reduce facility demand by up to fifteen percent during declared grid emergencies, with compensation at the prevailing locational marginal price;

**(c)** A commitment that any new generation procured under a power purchase agreement matched to facility load shall be sited within the ISO-NE control area.

#### **7. Data Center Coordination Council.**

**(a)** The Commission shall convene a Council comprising representatives of the Public Utilities Commission, the Department of Environmental Protection, the Office of the Public Advocate, the Maine Climate Council, the Wabanaki Nations, the Maine Municipal Association, and two members appointed by the Legislature with technical expertise in computing infrastructure or artificial intelligence.

**(b)** The Council shall (i) review Workload Composition Reports and Grid Impact Assessments; (ii) issue annual public findings on the cumulative effects of covered facilities; (iii) recommend regulatory or legislative refinements; and (iv) coordinate with the New England States Committee on Electricity to harmonize regional approaches.

#### **8. Audit, Methodology, and Enforcement.**

**(a)** The Commission shall, on a biennial basis, retain an independent technical auditor to verify a representative sample of Workload Composition Reports.

**(b)** Within 180 days of enactment, the Commission shall adopt by rule (i) a methodology for assessing the rate impact of large concentrated load additions, drawing on the New York Public Service Commission's Order in Case 22-E-0064; and (ii) a convention for the calculation of cumulative training compute consistent with 15 C.F.R. part 744.23 and analogous thresholds in other jurisdictions.

**(c)** An operator that knowingly files a materially false Report shall be subject to a civil penalty of not less than \$10,000 per violation per day, and the Commission may suspend the facility's interconnection authorization. Penalties shall be deposited in the Grid Resilience Fund.

#### **9. Effective Date.**

This Act takes effect 90 days after enactment. Operators of covered facilities operating, under construction, or holding executed interconnection agreements as of the effective date shall file an initial Report within 180 days and execute a Grid Stewardship Agreement within one year.